

		disclose material facts regarding alleged defects in a residential property sale. Plaintiff bases his claim on the same failure to disclose. (FAC, ¶¶ 28-31.) The court in <i>Vera</i> ruled the gravamen of the plaintiff's claim was in fraud. (<i>Ibid.</i>) Thus, the gravamen of Plaintiff's claim is also in fraud. "Within three years: [¶¶] (d) An action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338(d).) The FAC alleges the purchase occurred in May 2021. (FAC, ¶ 9.) Plaintiff attached an email correspondence from June 4, 2021 to the FAC between his real estate agent and Defendants' agent in which Plaintiff's agent admits Plaintiff called about the allegedly fraudulently concealed defect. Thus, from the face of the FAC, the latest Plaintiff could have discovered the defect was June 4, 2021. Plaintiff filed his complaint on May 8, 2025. Therefore, Plaintiff's first cause of action is barred by the statute of limitations. Accordingly, the Adams' demurrer is sustained. Leave to amend is granted as it is not evident from the face of the FAC no breach of contract claim can be asserted.
7	Funding Capital Corp., LLC v. Garfield Langmuir-Logan 2024-01437501 Motion to Amend and Vacate Judgment	Plaintiff Funding Capital Corp, LLC's Motion to Consolidate is CONTINUED to October 12, 2026, at 1:45 p.m. in Department C-15. Plaintiff Funding Capital Corp, LLC ("FCC") seeks to consolidate this matter with seeks to consolidate this action with the related case, <i>Moreno Valley Gateway, LLC v. Funding Capital Corp LLC, et al.</i> (30-2025-01466084) ("MVG Action"), for all purposes. Defendants Garfield Langmuir-Logan and Kerry Logan, and Moreno Valley Gateway, LLC, the plaintiff in the MVG action, ("Opposing Parties") oppose the motion. FCC failed to include the caption for both cases on the face of the motion, contrary to California Rules of Court, rule 3.350(a)(1)(B). FCC also failed to file the notice of motion in the MVG Action, which is presently assigned to Judge Thomas S. McConville in department C28, contrary to rule 3.350(a)(1)(C). FCC is ordered to serve and file an amended notice of motion in this case and the MVG Action that includes the caption for both cases on the face of the motion no later than 7/20/26. No additional filings are allowed.